



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

February 14, 2025

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Eric Collazo**
Tax Registry No. 938246
Bronx Court Section
Disciplinary Case No. 2024-29718 / C-031353

The above named member of the service appeared before Assistant Deputy Commissioner, Trials Jeff S. Adler on December 17 and 18, 2024 and was charged with the following:

DISCIPLINARY CASE NO. 2024-29718 / C-031353

1. Said Police Officer Eric Collazo, while off-duty and assigned to the Fleet Services Division, on or about January 6, 2024, at about 1315 hours, wrongfully stole or attempted to steal merchandise from a Walmart store, located at 220 Route 6, Milford, Pennsylvania.

A.G. 304-06, Page 1, Paragraph 1

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

18 Pa. C.S. § 3929

RETAIL THEFT

In a Memorandum dated January 22, 2025, Assistant Deputy Commissioner, Trials Adler found Police Officer Collazo guilty of the sole Specification in Disciplinary Case No. 2024-29718 (PODS Case No. C-031353). Having read the Memorandum and analyzed the facts of this matter, I approve of the findings, and the penalty recommendation that Police Officer Collazo be separated from the Department by way of vested interest retirement.

Thus, an *immediate* post-trial settlement agreement will be implemented with Police Officer Collazo in which he shall forfeit thirty (30) suspension days to be served, forfeit thirty (30) suspension days already served, forfeit all time and leave balances, be placed on one (1) year dismissal probation, and immediately file for vested interest retirement.

Such vested interest retirement shall also include Police Officer Collazo's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department.

If Police Officer Collazo does not agree to the terms of this vested interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY**.



Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

January 22, 2025

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2024-29718
Police Officer Eric Collazo	:	
Tax Registry No. 938246	:	
Bronx Court Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Michael F. Dailey, Esq.
One Riverdale Avenue, Suite One
Bronx, NY 10463

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Eric Collazo, while off-duty and assigned to the Fleet Services Division, on or about January 6, 2024, at about 1315 hours, wrongfully stole or attempted to steal merchandise from a Walmart store, located at 220 Route 6, Milford, Pennsylvania.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT
GENERAL REGULATIONS

18 Pa. C.S. § 3929

RETAIL THEFT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 17 and 18, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Alexis Vasquez as a witness, and introduced into evidence hearsay statements from the loss prevention officer and arresting officer in Pennsylvania, as well as video footage showing Respondent inside Walmart. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty, and recommend a penalty of Forced Separation from the Department.

ANALYSIS

Respondent is accused of shoplifting from a Walmart store in Pennsylvania, while off-duty on the afternoon of January 6, 2024. Video footage from the store (Dept. Ex. 4) shows him at a self-checkout machine, where he removed multiple items from his shopping cart, scanned them, and put the items into plastic bags. Once the bags were full, Respondent set them on the floor while he continued to scan. When the scanning was complete, Respondent paid for the

scanned items, and placed them back into the shopping cart. The itemized receipt from his purchases shows the total amount paid to be \$230.91. (Dept. Ex. 10)

After loading up his shopping cart, Respondent left the self-checkout area and proceeded toward the exit, where he was stopped by a Loss Prevention Officer ("L.P.O."). Respondent was escorted back to the office, where he remained until a police sergeant from the local Pennsylvania precinct arrived and issued him a citation for retail theft. As discussed below, it is alleged that Respondent had five items in his cart for which he deliberately did not pay, with a total value of approximately \$57.37.

Neither the L.P.O. nor the arresting sergeant appeared at trial. Instead, the Department Advocate introduced into evidence several hearsay statements and reports prepared by them in connection with this incident. In a recorded telephone interview with IAB on March 14, 2024, the L.P.O. stated that through a closed-circuit television camera she observed Respondent place a tomato into a shopping bag without scanning or weighing it. She then saw him fail to scan a loaf of bread before placing it into a bag. From her office, the L.P.O. temporarily paused Respondent's machine, and had a store worker approach him. The worker correctly scanned the loaf of bread, and walked away as Respondent continued his checkout. Through the camera, the L.P.O. then observed Respondent hold a box of granola bars and a box of toddler snacks in one hand at the same time as he did his scanning motion; only the granola bars were picked up by the scanner, but he bagged both items. Respondent completed his scanning and paid, but the L.P.O. noticed that there were additional items in his cart that had not been scanned: a box of Cascade dishwasher pods, a package of paper plates, and a water bottle. The L.P.O. saw Respondent place the items he had bagged back into the cart, on top of these three unscanned items, and leave the checkout area. (Dept. Exs. 3 & 3A at 8-9)

Based on her observations, the L.P.O. left her office and stopped Respondent as he was heading toward the exit. She stated that she informed him there were some unpaid items in his cart, and asked him to accompany her to the office. She asked if he had a separate receipt for any of the items, but Respondent answered that he did not. The L.P.O. informed him that since the unpaid items exceeded \$25 in total value, they would be contacting the police; Respondent protested that he was a police officer, and he can't get in any trouble. Nevertheless, she did call the police, and a sergeant arrived to process Respondent for retail theft. As he was doing so, Respondent showed the sergeant his phone, claiming he had paid for some of the unscanned items. The L.P.O. looked at the phone, and saw an online order had been placed for the Cascade and the plates, for pickup the following day, January 7. As such, they continued to process Respondent for retail theft. Later, upon closer inspection of the online order (Dept. Ex. 9), the L.P.O. saw that Respondent had actually placed that order *after* he had already been stopped, while he was sitting inside the office; a photograph (Dept. Ex. 6) captures the moment he did so at 1220 hours. (Dept. Ex. 3A at 10-12)¹

The arresting sergeant from Pennsylvania was interviewed by telephone on the day of the incident. In that recorded interview (Dept. Exs. 1 & 1A), the sergeant stated that Respondent was accused by Walmart of stealing five items totaling \$57.37, so he arrested him for retail theft. The sergeant noted that Respondent claimed he had ordered some of the allegedly stolen items for customer pickup, but the pickup was scheduled for the next day. According to the sergeant, the L.P.O. was investigating whether Respondent had actually placed that online order while he was in custody inside the loss prevention office. (Dept. Ex. 1A at 3-6, 9, 14) The next day, January 7th, IAB had a follow-up phone conversation with the sergeant, who stated that the

¹ In the L.P.O.'s written statement (Dept. Ex. 8), she provided essentially the same narrative.

L.P.O.'s investigation had revealed that Respondent had placed the online order for two items at 1220 hours, while he was sitting inside the loss prevention office. (Dept. Exs. 2 & 2A at 4-5) The sergeant also completed an "Incident Report Form" (Dept. Ex. 5), where he essentially reiterated the statements he made during the telephone conversations.

The parties are in agreement that Respondent promptly called the Operations Unit to report the incident. According to the Operations Log (Dept. Ex. 11B), the call, which was not recorded, was placed at 1324 hours. After receiving that notification, the Operations officer then called the IAB Command Center at 1344 hours to relay the information provided by Respondent. In that call, which was recorded (Dept. Exs. 11 & 11A), the Operations officer states that Respondent had called in to report he had been arrested in Pennsylvania. According to the Operations officer, Respondent provided the following details: he had shopped and paid for \$200-worth of merchandise, when he was stopped he also had with him three additional store items that he had purchased online, but he was told by the L.P.O. that he was not allowed to pick up those three items until the next day. (Dept. Ex. 11A at 3-4, 7)

Respondent testified that at the time of the incident, which occurred on a Saturday, he was living in Orange County with his wife, who was pregnant, and their 21-month-old daughter. Respondent also has an 11-year-old daughter living in New Jersey, for whom he pays child support. Respondent worked a midnight tour beginning Thursday evening, and returned home at approximately 1000 hours Friday morning. His wife, a registered nurse, had to work a 12-hour shift Friday evening beginning at 1900 hours, so Respondent took off from work to stay with their daughter, who was sick. Respondent was unable to get any sleep, since he was attending to his daughter, who had a fever and was throwing up. When his wife returned home Saturday

morning, Respondent prepared to go to Walmart, since they needed some supplies in anticipation of a coming snow storm. (Tr. 81-83, 87-93)

Once he arrived at the Pennsylvania Walmart, which was 15 minutes from his home, Respondent rushed to gather the items he needed. Respondent testified that he brought his cart to the self-checkout, where he scanned his items and placed them in plastic bags. He thought he did scan two of the items in question, the tomato and the box of toddler snacks. When he was done, he paid with his debit card and headed to the exit, where he was stopped by the L.P.O. She informed him that there were items in his cart he had not paid for, and escorted him to the office. (Tr. 93-96, 130-32, 137-39, 145-49, 163)

Respondent, who was in shock, tried to explain to the L.P.O. that he did not intend to steal anything. He testified that he told her he was "pretty sure" he scanned the tomato and toddler snacks. When asked about the three unbagged items in his cart (Cascade, paper plates, water bottle), Respondent insisted he did not want those items, but forgot to put them back before leaving the store. Respondent testified the store personnel repeatedly mentioned that if the total value of the stolen items was under \$25.00, they would not have to call the police. Respondent believed they were indirectly suggesting to him that if he were able to reduce the amount to under \$25.00, he could avoid police involvement. He was tired and nervous, and while he sat in the office he placed an online order for the two items he was able to find on his phone app, the Cascade and the plates, with the hope of lowering the total amount of unpaid items to beneath the threshold. His plan did not work, as the police were still notified, and a sergeant arrived and fingerprinted him. He tried showing them the order he had placed online and asked if that would make it better, but the L.P.O. stated that the items from the online order were for pickup the following day. (Tr. 96-112, 144, 150-57, 161)

After he was processed, Respondent was released, and told he would be mailed information about his court date.² As soon as he left, Respondent notified Operations regarding the accusation of retail theft. He testified that he was incoherent and “blabbing,” and could not recall the details he provided during the call, but maintained he was not trying to deceive anyone about what had transpired. (Tr. 112-15, 159)

At trial, Respondent continued to insist that he did not intentionally steal any items. He testified that he was rushing to complete his shopping, and merely made a mistake with respect to the unpaid items in his cart. Respondent explained that this incident has had a “crushing” impact on his family, and has strained his relationship with his wife. He fears the financial hardship of losing his job, which he loves, and wishes to remain with the Department so that he can continue to serve the people of New York City. (Tr. 98-100, 118-21, 163-64)

Respondent faces one specification, alleging that he wrongfully stole, or attempted to steal, five items of merchandise from a Walmart store in Pennsylvania. It is undisputed that none of the five items appeared on the store receipt. (Dept. Ex. 10) Respondent claims, however, that he did not intend to steal any of the five items. Specifically, with respect to the tomato and box of toddler snacks, he thought that he had appropriately scanned and paid for them. As for the remaining three items in question, the Cascade, paper plates, and water bottle, Respondent claimed he had decided not to purchase those items, but had forgotten to remove them from his cart before leaving.

However, after carefully viewing this video footage, in conjunction with the statements of the L.P.O., I conclude that Respondent’s intention was to steal the items from Walmart. The video footage in evidence (Dept. Ex. 4) paints a picture contrary to what Respondent described.

² Respondent testified that when he went to court on February 21, 2024, the judge dismissed the charges. (Tr. 116-18)

At 2:47, Respondent fails to scan a tomato before placing it into a shopping bag, in contrast to how he correctly scans avocados at 2:37. He fails to properly scan a loaf of bread at 3:00, and a red light appears on the checkout machine; a Walmart employee approaches and correctly scans the item. Respondent continues the checkout process and at 4:00, he correctly scans two boxes of snacks separately, before placing them inside a shopping bag. However, five seconds later, Respondent holds two boxes of snacks together in one hand as he swipes them over the scanner, and only one of the two items scans; nevertheless, he places both into a shopping bag. At 6:30, two of the unbagged items, the Cascade and the paper plates, can be seen inside the cart. Respondent does not remove those items from the cart; rather, he pushes the plates and Cascade slightly back, and begins to place bagged items into the cart on top of them. He then completes the checkout with his debit card, and walks away from the area, with the unbagged, unscanned items still in his cart.

These were not the type of innocent mistakes that sometimes occur with self-checkout machines. Rather, this was stealing by Respondent. He employed different techniques in order to avoid paying for certain items: he swiped the tomato quickly across the screen without scanning or weighing it; he palmed a box of toddler snacks in his hand at the same time he scanned another item, so that the snacks went undetected; and he carefully placed bags filled with items on top of several additional items that he did not scan (Cascade, paper plates, water bottle), thereby intentionally concealing these unbagged items from view. I reject Respondent's suggestion that he merely forgot to put the unbagged items back before leaving the store; not only did he not set them aside while at the self-checkout, he deliberately concealed the items underneath other bags before attempting to exit the store.

Making matters worse, it is undisputed that Respondent, as he sat in the security office, used his phone to place an online order for two of the unscanned items, the Cascade and the paper plates. At trial, Respondent claimed he was not trying to deceive anyone by placing the online order, and was merely attempting to lower the total amount of unpaid items to beneath the \$25.00 threshold so that the police would not be contacted. However, based on the credible evidence, I reject that claim. In the call from Operations to IAB (Dept. Ex. 11), the Operations officer relayed the information that had just been provided by Respondent minutes earlier. There was no mention of lowering the amount of items beneath the threshold. Rather, the story Respondent told was that some of the allegedly stolen items had already been paid for, and he merely picked them up early. As such, I find that when he placed the online order, Respondent was trying to deceive store security into believing that he had paid for some of the items prior to arriving at the store, which he clearly did not do.

To be sure, at the time of this incident Respondent did pay for more than \$200.00 worth of merchandise. Also, he was operating on little sleep, and dealing with the stress of a sick child at home. Nevertheless, that does not excuse the behavior of Respondent, who took several deliberate steps to steal the items, and then made an attempt to cover up his misconduct. The record has established, by a preponderance of the credible evidence, that Respondent wrongfully stole or attempted to steal merchandise from Walmart. Accordingly, I find him Guilty.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's

employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2005 has been found guilty of wrongfully stealing several items from Walmart, totaling approximately \$57.00. The presumptive penalty for such an offense is Termination, with a mitigated penalty of Forced Separation.

On the one hand, it is troubling that Respondent made a number of poor, deliberate decisions during the course of this incident, and there needs to be appropriate accountability. He intentionally placed two items (tomato, toddler snacks) in shopping bags without scanning them properly, and also tried leaving the store with three additional items (Cascade, paper plates, water bottle) that he concealed in his shopping cart without ever having tried to scan them. He then attempted to avoid responsibility for his actions by using his phone to place an online order for two of the items, but the L.P.O. later noticed that he had placed the phone order while he sat in their office, *after* he had already been stopped. When he reported the incident to Operations, he again emphasized that he had paid for some of the items, which was a further attempt to minimize his misconduct.

Nevertheless, in seeking a penalty less than Termination, counsel for Respondent asks that consideration be given to the stress Respondent was dealing with because of his ill child, and Respondent's lack of sleep in the time leading up to his visit to Walmart. But more than that, this tribunal is mindful of Respondent's strong career history. In more than 19 years with the Department, Respondent has no formal disciplinary record. He has received the highest rating of "Exceptional" in each of his last three annual performance evaluations. When viewed in this

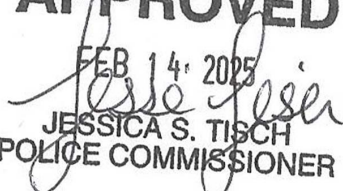
context, Respondent's actions on January 6, 2024 appear to be an aberration from an otherwise exemplary record with the Department. While Respondent's length of service and strong career history do not excuse his misconduct in this case, they are factors in favor of a mitigated penalty.

Even though the value of the items for which Respondent paid (\$226.73) far exceeded the amount stolen (\$57.37), theft on any level and in any amount is completely unacceptable. Such behavior undermines the high level of integrity expected from members of this Department, and Respondent's continued employment with the NYPD is untenable. On balance, a penalty that provides for Respondent's separation from the Department, while allowing him to retire, is reasonable and appropriate under the totality of the facts and circumstances presented here. Accordingly, I recommend that the Police Commissioner direct an immediate post-trial settlement negotiation, allowing Respondent to file for vested-interest retirement, along with whatever additional conditions she deems appropriate.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED
FEB 14 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER ERIC COLLAZO
TAX REGISTRY NO. 938246
DISCIPLINARY CASE NO. 2024-29718

Respondent was appointed to the Department on July 11, 2005. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2021, 2022, and 2023.

Respondent has no formal disciplinary history. In connection with the instant matter, Respondent was suspended without pay from January 6 through February 4, 2024. He also was placed on Level 2 Discipline Monitoring in March 2024; monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials